

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. AND OCEAN NETWORK
EXPRESS (NORTH AMERICA), INC. - POSSIBLE VIOLATIONS OF
46 U.S.C. § 41102(C)**

JOINT STATUS REPORT

On November 17, 2022, the Bureau of Enforcement, Investigations, and Compliance (BEIC) and Ocean Network Express PTE. LTD. (Respondent), collectively “Parties,” met with the Presiding Officer via a virtual conference to apprise her of settlement negotiations. Present at the meeting:

- Presiding Officer: Erin Wirth, Chief Administrative Law Judge
- Counsel for Respondent: Rebecca A. Fenneman and Eric Jeffrey
- Counsel for BEIC: Julie L. Berestov, Brenda Doty, and Theron Korsak

Subject matter discussed at the meeting:

- BEIC presented reasons to delay the briefing schedule in favor of a settlement agreement between the parties that would be in the best interests of the shipping public.
- Parties agreed to submit a settlement package to the presiding officer no later than December 2, 2022.
- Parties were reminded by the Presiding Officer of the accelerated briefing schedule.
- The Presiding Officer requested the parties to review the Commission’s Order of October 27, 2022, reversing the initial decision and remanding the case for further proceedings; specifically, Commission’s policy statements, settlement factors, and Docket No. 20-16.

The Parties are aware that, if settlement is not reached by December 2, 2022, initial briefs are due to the presiding officer on December 12, 2022, with response briefs due on January 3, 2023.

DATED: November 18, 2022

Respectfully Submitted,

Theron R.
Korsak

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R. Korsak
Date: 2022.11.18
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CERTIFICATE OF SERVICE

I certify that on the 18th day of November 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 entitled "Waiver of Certain Filing Requirements Due to COVID19".

**Theron R.
Korsak**

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